

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

CRIMINAL LAW

HOMICIDE

INTRODUCTION

Homicide is the killing of a human being in a manner not justified by law. There are two types of homicides namely, lawful and unlawful homicide. The law relating to unlawful homicide is contained in **Section 306 of the Criminal Code**. That section stipulates clearly that it is unlawful to kill any person unless such killing is authorized, justified or excused by law.

The implication here therefore is that some homicides are lawful while others are unlawful. It is lawful when authorized by law such as a situation where a hangman hangs a condemned criminal or where a soldier shoots and kills a condemned armed robber tied to a stake etc.* There are various homicide offences such as murder, manslaughter, (both voluntary and involuntary) , infanticide and causing death by dangerous driving.* The offence of homicide is the most serious offence as it is the violation of the sanctity of human life. The prescribed penalty for the act is death. The implication of the foregoing therefore is that for offence to amount to homicide, the killing must be unlawful, the act (or omission) of the defendant must have been the legal cause of death of the victim, indeed causation must be established. Furthermore, the victim must be a person who is in being, that is, the victim must be a human being who was alive at the time of the defendant's actions. We shall examine the various homicides respectively below.

MURDER

Murder is the unlawful killing of another human being with malice aforethought. Malice aforethought describes the *mens rea* required for a conviction of murder. If malice aforethought is lacking, then the unlawful homicide will be manslaughter.

For purpose of clarity we take the statutory provisions separately:

S. 306 of the Criminal Code already discussed above states that, it is unlawful to kill any person unless such killing is authorized or justified by law. The emphasis is on the killing of a human being. But the question is what category of human being is capable of being killed? When does a child become a person capable of being killed and will the child be said to come out in a living state? The answer to this question is covered by **Section 307 of the Criminal Code** which states that "A child becomes a person capable of being killed when it has completely proceeded in a living state from the body of it's mother, whether it has breathed or not, and whether it has independent circulation or not, and whether the navel string is severed or not.* The implication of Section 307 is that a child becomes a human being when it comes out completely out of the mother's womb alive.

S. 308 gives the legal definition of killing. It states that

“Except as hereinafter set forth, any person who causes the death of another, directly or indirectly, by any means whatever, is deemed to have killed that other person.”

This means that one can kill directly or indirectly. For instance, if John shoots at Mary and kills her, he has killed her directly. On the other hand if John gets Paul to kill James, John would be said to have caused the death of James.

S. 309 is concerned with causing death before or during the birth of a child. This section states that “when a child dies in consequence of an act done or omitted to be done by any person before or during its birth, the person who did or omitted to do such acts is deemed to have killed the child.

What then is the legal implication? **It means that S. 307 must be in existence for S. 309 to apply.**

That means that the child must have proceeded completely out of the mother’s womb in a living state, then must die subsequently as a result of what was done or not done before or during the delivery. In **State v Akpan** the court held that the child must have completely proceeded from its mother’s body in a living state and died subsequently from the act or omission before or during the birth of the child.

Causation

A person can only be held responsible for the death of another if he/she caused the death of the deceased. The question that immediately follows is how will death occur as to amount to homicide? or for causation be established? Question can be answered by considering some of the relevant sections of the Criminal Code.* **Section 310** states that: **a person who, by threats or intimidation or any deceit, causes another person to do an act or make an omission which results in the death of that other person, is deemed to have killed him.**

The wording of S. 310 amounts to the following situations:

(a) a situation where the accused intends that the deceased should do the act or make the omission which results in his death. For instance, A pointing a loaded gun at B and orders B to jump down from a storey building and B does so to his death. In this case, A has caused the death of B by threat.

(b) The second situation is where A only threatens or intimidates B, without ordering him/her to do any specific act or omission, but out of fear B does something that result in his death. For instance A who is standing by B’s door tells B that he intends to unleash wild and hardened criminals in B’s room in about an hour’s time. Before that time B commits suicide to avoid facing such criminals.

It would appear that before the accused could be held to have caused the deceased’s death, the act or omission must be a reasonable foreseeable consequence of the threat or intimidation

offered by the accused. However, this assertion is not mentioned in S. 310 of the Criminal Code. The case of **R v Nwaoke** is a case of threat by Juju. In this case, the accused pointed a juju called “Onye Uku” at the deceased who owed him money and said to her “since you refuse to pay me my money this juju will kill you or since you refuse to pay me you shall no more eat or drink”. He left the juju at the deceased’s house and although there was no evidence that she stopped eating or drinking, the deceased became very depressed and six days later she went out and hanged herself on a high tree. On appeal the West African Court of Appeal was upheld, quashing the conviction, that there was no evidence that the particular juju used has ever resulted in a person killing himself and no evidence that the accused knew that his conduct would be reasonably likely to cause the deceased to commit suicide or take her life. It is suggested therefore that where the deceased through fear does an act which results in his death the accused who created the source of fear is liable only if there are reasonable grounds for the deceased’s apprehension.

Furthermore, **section 311 of the Criminal Code** deals with the acceleration of death and it states that: a person who does any act or makes any omission which hastens the death of another person who, when the act is done or the omission is made, is labouring under some disorder or disease arising from another, is deemed to have killed that other person. An example of this situation is where a sick patient on the hospital bed is being strangled.* In this case, the chain of causation has been broken with the acceleration of death.

In addition, the effect of neglect by the injured person is contained in **sections 312 and 313 of the Criminal Code**.

In **Effanga v the State** the appellant was convicted in the High Court for murder and sentenced to death. The case of the state is that it is immaterial that the death of the deceased could have been only prevented by the proper care or treatment. Considering this section therefore the decision of the court was that the trial judge was right in coming to the conclusion that it was the act of the appellant that caused the death of the deceased.

Another important point to consider is when death would occur that would amount to homicide.* The limitation as to time of death is provided in **S. 314 of the Criminal Code**.

Section 314 of the Criminal Code states that a person is not deemed to have killed another if death of that other person does not take place within a year and a day of the cause of death.* This section added that such period is calculated to include the day on which the last unlawful act contributing to or resulting in the cause of death was done.

For instance, if A stabbed B on the 1st of Jan, 1999 by 1pm or any time before midnight, it must be not later than midnight of 1st Jan 2000 for A to be responsible for his death. If he dies after midnight, it becomes 1yr and 2 days and so A will not be responsible for his death going by S. 314.

By S. 315, unlawful homicide is defined as the unlawful killing of a human being. By virtue of this section, unlawful homicide could be murder or manslaughter.

Death caused by Omission to Perform a Duty

In this regard, moral duty will not suffice, it must be a legal duty. By virtue of S 300 there is a duty to provide necessities to those that are aged, infirm, in detention etc.

The necessities for the purpose of this section means food, clothing, shelter and medical attention.* It does not include education.

S. 301 deals with the duty of the head of the family to provide the necessities of life for his child under the age of fourteen years.

S. 302 deals with the duty of master or mistress to provide necessary food, clothing or lodging, for servant or apprentice under the age of sixteen years.

The accused could be convicted for murder or manslaughter if the neglect is such that shows recklessness or carelessness.

If the neglect is willful neglect and the person dies, then the accused have committed murder. But if the accused was just reckless, then he will be convicted for manslaughter.

CAUSATION: How Do You Establish Causation?

In order to establish causation for the purpose of criminal liability. it is necessary that there be both factual and legal causation. Note that causation in fact does not always mean that there will be causation in law.

Factual causation

The defendant's actions must be a sine qua non (or "but for" cause) of the result. For example, "But for" the defendant striking the victim, she would not have died. In *R v White*, the defendant put cyanide in his mother's drink with intent to kill her. She had a heart attack and died before she had drunk any of the poisoned mixture. The defendant had not caused her death therefore prosecution failed to establish causation in fact. i.e his actions were not even a "but for" cause of her death.

Legal Causation

Causation in law can be established by showing that the defendant's act was an operative and substantial cause of death and there was no intervening event. In *R v Malcherek*; *R v Steel*, both cases raised the same question. Malcherek stabbed his wife with a kitchen knife causing a deep abdominal wound. Steel attacked a girl causing serious head injury. Both victims were put on life support machines during normal course of treatment. In each case, the machine was switched off after a number of test indicated that their brain death had occurred. Both M and S were convicted of murder. They appealed alleging that the judge should not have withdrawn the question of

causation from the jury. Steel also sought leave to adduce further medical evidence that the doctors in each case had not complied with all the suggested criteria for establishing death. Lord Lane C.J stated that it would not appear that there is a body of opinion in the medical profession that there is only one true test of death and that is the irreversible death of the brain stem, which controls the basic functions of the body such as breathing. When that occurs it is said that the body has died even though by mechanical means the lungs are being caused to operate and some circulation of blood is taking place. It was therefore held that the discontinuance of treatment in those circumstances does not break the chain of causation between the initial injury and the death. The appeal was therefore dismissed. See also **R v Smith**. In **R v Jordan**, the appellant stabbed the deceased in the abdomen. The wound was stitched. A few days later he died. On appeal it was held that the appellant was convicted of murder and the wound was mainly healed at the time of death. At the hospital, terramycine was administered to prevent infection. One minute the disease was found to be intolerant to this antibiotic. A doctor who was unaware of this ordered its continuance. Two fresh witnesses also testified that abnormal quantities of liquid had been given intravenously. This caused the lungs to become waterlogged and pulmonary oedema was discovered. Hallet J, stated that not only one feature, but two separate and independent features, of treatment were, in the opinion of the doctors, palpably wrong and these produced the symptoms discovered at the post-mortem examination which were the direct and immediate cause of death, namely, pneumonia resulting from the condition of oedema which was found. Conviction was therefore quashed.

Note that in Jordan the original wound had healed whereas in **SMITH, STEEL** and **MALCHEREK** the original wounds were still operating at the time of death.

MANSLAUGHTER

The offence of manslaughter is covered by section 317 of the Criminal Code which provides that any unlawful killing which does not amount to murder is manslaughter. The offence of manslaughter may be divided into two generic types, classified as voluntary and involuntary manslaughter.* Voluntary manslaughter is committed where the accused has killed another person with malice aforethought and consequently could be convicted of murder, but there is mitigating circumstances present reducing his culpability from murder to manslaughter because of provocation. *Involuntary manslaughter on the other hand is an unlawful killing committed by an accused who did not have an intention to kill or to commit grievous bodily harm but who, nevertheless has a state of mind which the law treats as culpable.

Voluntary Manslaughter

4.2.1 Provocation

By virtue of **S 318 of the Criminal Code**, if a person kills another in the heat of passion as a result of serious and sudden provocation, and before there is time for his passion to cool, he is guilty not of murder but of manslaughter. The implication of this section is that the unlawful

killing which have ordinarily amounted to murder will be reduced from murder to manslaughter because of the existence of provocation. This section did not define provocation however the courts have treated it as importing the common law rules of provocation as illustrated in the case of **R v Nwanjoku**.

However, the Supreme Court in **Obaji v State** defines “Provocation” within the meaning of S. 318 to be provocation under S. 283 of the Criminal Code. Thus, it would appear therefore that sections 283 and 318 must be read together.

Elements of Provocation

Provocation is only a defence to a charge of murder. That does not mean that provocation can be a justification for taking the life of another. Thus, the only effect of the successful plea of this defence is to reduce murder to manslaughter. However, before the plea of provocation will succeed the following conditions must be satisfied:

(a) **The Objective Test:** The provocation was enough to cause a reasonable person to lose his control. The implication is the effect which the provocation would have on a reasonable man.

That is, that the reasonable man might have been so provoked and then might have done as the accused did in the circumstances in which reasonable people would have responded as the accused did. For purpose of clarity, the important question is, who then is a reasonable man? In the case of **R v Adekanmi** the court held that a reasonable man in this context mean a reasonable man in the accused person’s station in life and standard of civilization. In **DPP v Camplin**, the accused a boy of 15, killed the deceased by striking him on the head with a chapatti pan because the deceased has buggered him against his will and then laughed at him as a result of which he lost his self-control. He was charged with murder but pleaded provocation. His counsel suggested to the jury that when they considered whether under section 3 of the Homicide Act 1958 the provocation was enough to make a reasonable man do what the accused did, they should consider not the reaction of a reasonable adult but that of a reasonable boy of the accused’s age. The Judge directed the jury that the test was that of a reasonable man, not of a reasonable boy of the accused’s age. The accused was convicted of murder and appealed to the Court of Appeal (Criminal Division) which substituted a conviction for manslaughter, taking the view that the direction was wrong. The prosecution appealed to the House of Lords which held that under S. 3 of the Homicide Act 1957 the Jury could in applying the reasonable man test take into account everything including the physical peculiarities of accused such as his age, colour, sex, physical and mental disabilities. The jury should be told that the reasonable man is a person having the power of self-control to be expected of an ordinary person of sex and age of the accused.

(b) The second element is that the act which causes death must be done in the heat of passion caused by sudden provocation and before there is time for passion to cool. If between the provocative act and the killing enough time has elapsed for passion to cool, a plea of provocation

will fail. This element is illustrated in **R v Green**, the prisoner's wife having left him went to stay with her mother where she began to accept the advances of Y. The prisoner tried very well to win back his wife but failed. At about 9pm one evening he visited his mother-in law and found his wife and Y having sexual intercourse. He returned to his own house to brood over his misfortune. At about 1 am he took a matchet and returned to his mother-law's house to kill Y if he was still there. He found his mother-in-law snoring and heard his wife and Y talking in a dark room. He struck twice on the bed and killed his wife. The mother-in law was also killed when she ran into the room. On a charge of murder the prisoner pleaded provocation, but this was rejected because between the provocation and the killing enough time had elapsed for the passion to cool. On the contrary, if he had killed the couple at 9 pm when he first saw them the pleas would have been successful.

(c) The passion must have been caused by sudden provocation. This means that there must be no cooling time. Also in ascertaining whether or not there has been enough cooling time it is proper to take into account the degree of provocation offered and the circumstance of the case. The issue is that the more serious the provocation the longer will be the time required for passion to cool. In **Thuku v Republic**, the appellant came home one night intoxicated and found his stepfather, the deceased beating his mother. He tried to separate them and the deceased hit him twice on the head with a stick warning him not to interfere in a fight between husband and wife. The appellant then went indoors, slept for few hours and woke in response to the deceased act. He went outside, found his mother dead with a serious head injury and saw the deceased some distance away. He then moved his mother's body to a shade, took a panga from the house and chased the deceased to a house about three hundred yards away. They ended up having exchange of words which infuriated the appellant the more and while they were walking towards the mother's body the appellant killed the deceased. The trial judge rejected the appellant's plea of provocation to a charge of murder because enough time had elapsed for passion to cool. On appeal, it was held that incidents formed a connected series of event which made the actual killing of appellant's mother so proximate to him as to have been constructively done in his presence and later, taking into account the degree of provocation, enough time had not elapsed for passion to cool.

(d) Provocation should not be by a third party. Provocation by one person is not an excuse for killing another person who has not in any way provoked the accused. In **R v Ebok**, the accused went to a farm where he met four women, one of whom was his "ex-wife" who has since married another man. He demanded the cloth she was wearing and as she was untying it at the insistence of the other women he stabbed her several times and killed her. He overtook one of the other three women as they were running away and killed her. He was charged with murder of his "ex-wife" but was convicted of manslaughter on ground of provocation. On further charge of murdering the second victim it was held that even if the accused lost his self-control as a result of the provocation given by his ex-wife, he was nevertheless guilty of murder because the second woman did not provoke him.

(e) The fourth element is that the degree of retaliation must be proportionate to the provocation offered, in so doing the court must consider the nature of the instrument with which the homicide was offered, and the nature of the act resulting from the provocation. For instance, the provocation that may cause a reasonable person to retaliate with a slap on the face may not reduce murder to manslaughter where the accused savagely batters the offender to death with a deadly weapon like a gun or a machete. But if a man who is provoked retaliates with a blow from his fist on another grown man a jury may well consider that there was nothing excessive in the retaliation even though the blow might cause the man to fall and fracture his skull, for the provocation might well merit a blow with the fist. The case would be different if the person provoked not only struck the man, but continued to rain blows upon him or to beat his head on the ground. In **R v Akpan**, a woman brought her daughter's dead body home and when her husband remonstrated with her against such conduct, she used filthy and offensive language to him and he stabbed her five times with a heavily dagger. It was held that the degree and method of violence used by him precluded the principle of proportionality. Note that the proportionality is not specifically provided for in the Criminal Code but was imported from English law.

(f) The fifth element Is that the killing must have involved an assault, in which case, S. 318 is to be read with S. 283.

INVOLUNTARY MANSLAUGHTER

Involuntary manslaughter could arise where a person causes death under such circumstances that he did not intend to kill and did not also foresee death as a probable consequence of his conducts but there is some blameworthiness in his conduct. It is now common to assert that involuntary manslaughter takes three forms:

- (1) Reckless manslaughter
- (2) Gross negligence manslaughter
- (3) Constructive or unlawful manslaughter

(1) Reckless manslaughter

This occurs where the accused is aware that his conduct involves a risk of causing death or probably grievous harm, and she unreasonably and unjustifiably takes the risk. In **MALONEY**, the House of Lords held that cases in which the accused may have foreseen that death or really grievous harm were highly probable to result from her act, without intending such consequences,

would no longer constitute murder. Such cases must then have fallen, by default into the scope of the offence of manslaughter.

For an act or omission which results in death from negligence to be manslaughter, mere negligence does not suffice. Negligence has to be gross reflecting the degree of the blameworthiness of the defendant. It is important to note that the Criminal Code is silent as to the required degree of negligence but Nigerian Courts have held that the degree is the same as in English law. Lord Hewitt C.J in Bateman stated that:

“In order to establish Criminal liability the facts must be such that, in the opinion of the jury, the negligence of the accused went beyond a mere matter of compensation between the subjects and showed such disregard for the life and safety of others as to amount to a crime against the state and conduct deserving punishment”.

Crucially, the test required is that there will be a duty of care by the accused to the victim, breach of which caused the victim's death.

The issue of gross negligence manslaughter is illustrated in the case of **R v Adomako**, in that case the accused, who was an anaesthetist, was acting in such capacity during an eye operation, which involved paralyzing the patient. During the operation endotracheal tube which supplied oxygen to the patient became disconnected from the ventilator. The accused became aware that something was wrong four and half minutes after the disconnection when an alarm sounded. However, Adomako carried out various checks of the equipment and administered atropine to raise the patient's pulse as these checks could not reveal the problem. Approximately 9 minutes after the disconnection the patient suffered a cardiac arrest from which he died. It was only at this point that Adomako discovered the disconnection. The prosecution alleged that Adomako is guilty of gross negligence. Adomako was convicted of manslaughter and he appealed. The Court of Appeal dismissed his appeal certifying point of law of public importance.

Note that a medical doctor who negligently causes a patient's death is not guilty of manslaughter unless his negligence or incompetence is so great as to show a disregard for life and safety.

CONSTRUCTIVE OR UNLAWFUL ACT MANSLAUGHTER

The fact that death is caused by the unlawful act of the accused is not sufficient to lead to a manslaughter verdict. The accused is not sufficient to lead to a manslaughter verdict. The term unlawful act is qualified in various ways, thus apart from the fact that the accused must commit an unlawful act, the unlawful act must be criminal as well as dangerous one in the sense that it must expose the victim to the risk of some bodily harm resulting there from. In **R v Church** the appellant was mocked by a woman and he fought with her knocking her unconscious. On failing to revive her and in a panic, thinking that she was dead, threw her into the river where she drowned. The appellant was convicted of manslaughter. He appealed against his conviction for manslaughter on the ground of a misdirection by the trial judge as to manslaughter, his appeal was equally dismissed.

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